



DECISION

POS/455/KE-25

Complaint No. :

Name and Address
of the Complainant :

Mr. Riaz Ahmed Dogra, c/o Mr. Farooque Mirza, House
No. 1, Rana Town, Kazimabad, Model Colony, Karachi.

Name of the Agency
Complained against :

Karachi Water & Sewerage Corporation (KW&SC)

Name & Designation of
Investigation Officer :

Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :-

**ALLEGED NON-ADJUSTMENT OF 35% REBATE
DESPITE ELIGIBILITY AND EXCESS
PAYMENT.**

THE COMPLAINT

Mr. Farooq Mirza filed a complaint on 16.06.2025 on behalf of Mr. Riaz Ahmed Dogra, alleging that although he was declared eligible for a 35% rebate on lump-sum payment under the announced rebate policy of KW&SC and a revised rebate-adjusted bill was duly issued by the department, he inadvertently deposited the full original amount. Despite repeated representations, the excess amount arising out of the sanctioned rebate was neither adjusted nor carried forward in subsequent billing, compelling him to file the present complaint.

PROCEEDINGS

2. After admission of the complaint by condoning the delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date), and after receiving the mandatory Affidavit on Form "A" along with other relevant documents, a report was called from the Agency. In response, the Director Billing, RRG Department, KW&SC vide letter dated 06.10.2025, contended that the complainant voluntarily paid the full bill without invoking the rebate mechanism and, therefore, the system treated it as a normal payment. It was further stated that rebate adjustment is processed only when a consumer obtains and pays a rebate-adjusted bill.
3. The complainant filed a detailed rejoinder on 23.12.2025, asserting that the rebate had already been invoked, assessed, and approved by KW&SC through issuance of a revised bill, and that non-adjustment thereafter amounted to maladministration.

FINDINGS

4. I have gone through the case file and have noted that:
 - a) It has been established from the record that the complainant was lawfully eligible for a 35% rebate under the announced rebate policy of KW&SC and that such eligibility was affirmatively determined by the department itself, as evidenced by the issuance of a revised rebate-adjusted bill.
 - b) The issuance of the revised bill clearly demonstrates that the rebate was invoked, assessed, and formally approved by the competent authority.
 - c) The subsequent payment of the full amount, instead of the revised amount, was inadvertent and does not constitute waiver, abandonment, or relinquishment of an already sanctioned rebate.

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- d) Despite receipt of written representations and availability of complete record, KW&SC failed to adjust or credit the excess amount, thereby breaching its administrative duty to give effect to its own approved rebate decision.
- e) Such inaction amounts to maladministration under the applicable law and results in unjust enrichment, being retention of public money without lawful authority, which is contrary to the principles of fair, transparent, and equitable administration.

DECISION

5. In view of the foregoing, I in exercise of powers vested in me under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, hereby direct the Managing Director, KW&SC:

- a) To adjust or refund the excess amount arising out of the 35% rebate in favour of the complainant against his subsequent water bills, within 30 days of receipt of this decision.
- b) To ensure correction of the billing record/system entry of Consumer No.P0300558000A to properly reflect the sanctioned rebate.
- c) To improve internal coordination between its Billing, Revenue, and IT wings to prevent recurrence of such grievances.

6. Compliance report shall be submitted to this Office within 30 days hereof.

Given under my hand and seal of office



Sd /-

(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 16th 02, 2026